

Special Notice

SUBJECT* Data Innovations Software Service (VA-25-00056570) Sole Source Notification

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	77056-5643
SOLICITATION NUMBER*	36C25625Q0694
RESPONSE DATE/TIME/ZONE	03-28-2025 13:00 CENTRAL TIME, CHICAGO, USA
ARCHIVE	5 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	7G21
NAICS CODE*	518210
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network Contracting Office 16 5075 Westheimer Road, Suite 750 Houston TX 77056-5643
POINT OF CONTACT*	Oney Kelly Oney.kelly@va.gov

ADDITIONAL INFORMATION

AGENCY'S URL
URL DESCRIPTION
AGENCY CONTACT'S EMAIL ADDRESS
EMAIL DESCRIPTION

***= Required Field**

Special Notice

Special Notice

DESCRIPTION

NOTICE OF INTENT TO AWARD SOLE SOURCE

I. The Michael E. DeBakey VA Medical Center (MEDVAMC) Houston, Texas intends to solicit, and award a Sole Source Firm-Fixed-Price contract with a base year and four one-year option periods to, Data Innovation, Inc the OEM (Original Equipment Manufacturer), located at 120 Kimbal Ave, STE 100, South Burlington, VT 05403. Contractor shall provide all software support, upgrade, and maintenance for the Data Innovation Instrument Manager Core System and includes the following: Support and maintenance of End User connection software and license, Support and maintenance of end high availability user connection software and license and Support and maintenance of test software and license at the Michael E. DeBakey VA Medical Center, 2002 Holcombe Blvd., Houston, TX 77030.

II. The North American Industry Classification (NAICS) code for this acquisition is 518210, Data Processing, Hosting, and Related Services. Size Standard 35M.

III. This purchase will be made under Simplified Acquisition Procedures and Other than Full and Open Competition, as authorized by FAR 6.302-1 and in accordance with FAR 13.106-1(b).

IV. The anticipated award date is June 30, 2025. The Government intends to award a Firm-Fixed-Price contract.

V. Please note that this is not a request for competitive quotes and is being posted for informational purposes only. Interested Contractors in addition shall provide the following information as an attachment to your response:

1. Identify any other companies owned (wholly or in-part) by the owners of this business who provide goods or services under the same or a related NAICS codes.
2. Identify any other companies owned (wholly or in-part) by the owners of this business who provide goods or services that are registered under the same or a related NAICS code with the Center for Veterans Enterprise (CVE); Provide the certification type (SDVOSB/VOSB), Federal Identification Number, and state of incorporation for each.
3. Do you plan on responding to a solicitation for this requirement with a Joint Venture utilizing multiple owned companies as majority or non-majority owner?

Yes ___ No ___ If yes, please identify which companies are considering a Joint Venture and the ownership of each company.

VI. Interested parties may identify their interests and capability to respond to this requirement within seven (7) calendar days of the publication of this notice. Any response to this notice must show clear and convincing evidence that competition would be advantageous to the Government. Interested parties shall submit clear evidence with the capability to meet government requirement. To include but not limited to:

- Availability of (OEM) patches, updates, enhancements, and new versions of the software covered.
- Access to the (OEM) Data Innovations Driver Download web page for updated and new

Special Notice

Special Notice

drivers.

- Access to the (OEM) Data Innovations Language Locale web page for updated and new language locale.
- Individual username and password access to a customer online portal that allows creation and tracking of support requests and includes a Knowledge Base.
- Contractor's FSE response with a phone call to the COR or his/her designee within two (2) hours after receipt of telephoned notification twenty-four (24) hours per day. If the problem cannot be corrected by phone, the FSE will commence work (on-site physical or remote desktop response) within four (4) hours after receipt of this second notification and will proceed progressively to completion without undue delay.

This requirement for response time shall be the same for both services calls during the VA normal business hours and after-hour service calls.

VII. Questions regarding this notice should be sent to Contracting Officer Oney Kelly no later than March 28, 2025, by 13:00 (cst) at Oney.kelly@va.gov.

Special Notice

DRAFT SCOPE OF WORK

DATA INNOVATIONS INSTRUMENT MANAGER

I. EQUIPMENT IDENTIFICATION AND COVERAGE

A. Support & Maintenance for the Instrument Manager Core software

- 1). Production License 333021 Support & Maintenance
- 2). Test License 344986 Support & Maintenance
- 3) Additional supplies (production software):
 - Instrument Manager Interface Connections (20) with high availability.
 - End user Software Connection with HA/DR thin clients (10).

B. Support also includes but not limited:

- 1). Technical phone support for IT personnel & customer (end-user)

C. Maintenance includes the following:

- 1). Availability of patches, updates, enhancements, and new versions of the software covered.
- 2). Access to the Data Innovations Driver Download web page for updated and new drivers.
- 3). Access to the Data Innovations Language Locale web page for updated and new language locale.
- 4). Individual username and password access to a customer online portal that allows creation and tracking of support requests and includes a Knowledge Base.

Additional coverage terms detailed below.

II. GENERAL REQUIREMENT

Michael E. Debakey VA Medical Center (MEDVAMC) is requesting for a contractor to provide all software support, license renewal and software maintenance to all government-owned software listed above AND below in the Equipment Identification and Coverage Section at the MEDVAMC located at 2002 Holcombe Blvd, Houston, TX 77030. The Contractor shall furnish all labor, software and computer hardware or removable media tools to service the Instrument Manager Core software. The full clinic listing of the equipment can be found at the beginning of the document in the Equipment Identification and Coverage Section.

The Contractor shall provide software licensing, support and maintenance services by authorized Service providers of the equipment listed above. The software shall be maintained to be at optimal performance level. Upgrade/updates shall be performed as necessary, as per manufacturer's specifications. Any maintenance, upgrades or updates shall be scheduled at least three (3) days in advance with the Contracting Officer Representative (COR). Service also includes all necessary intervening service calls required to bring the software to optimal performance level. The MEDVAMC will provide at their discretion first call service, which includes trying to resolve any problem first before calling the contractor.

III. DEFINITIONS/ACRONYMS

Special Notice

- A. Biomedical Engineer(ing) - Supervisor or designee.
- B. CO - Contracting Officer
- C. COR - Contracting Officer's Representative
- D. FSE - Field Service Engineer. A person who is authorized by the contractor to perform maintenance (corrective and/or preventive) services on the VAMC premises.
- E. ESR - Vendor Engineering Service Report. A documentation of the services rendered for each incidence of work performance under the terms and conditions of the contract.
- F. Acceptance Signature - VA employee who is authorized to sign-off on the ESR which indicates that the PM has been concluded or is still pending completion, or that the Emergency Repair has been accomplished or is still in a pending status.
- G. Authorization Signature - COR's signature; indicates COR accepts work status as stated in ESR.
- H. NFPA - National Fire Protection Association.
- I. CDRH - Center for Devices and Radiological Health.
- J. MEDVAMC – Michael E. DeBakey Veterans Affairs Medical Center
- K. VAH - Department of Veterans Affairs Hospital
- L. OEM - Original Equipment Manufacture

IV. HOURS OF COVERAGE

A. Normal hours of coverage are Monday through Friday from 8:00 a.m. to 5:00 p.m., excluding holidays. All service/repairs shall be performed during normal hours of coverage unless requested or approved by COR or his designee.

B. Software update/upgrade installations shall be scheduled and performed outside normal hours of coverage at no additional charge to the Government (unless it would be detrimental to equipment up-time; to be determined by the COR).

C. Work performed outside the normal hours of coverage at the request of COR or designee shall be billed under the established contract line item number (CLIN) in the price schedule. Work performed outside the normal hours of coverage at the request of FSE will be considered service during normal hours of coverage.

D. Federal Holidays observed by the Government are: New Year's Day, Martin Luther King's Birthday, President's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving and Christmas; along with any other day specifically declared by the President of the United States to be a national holiday. In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by Executive Order
- Any other day designated by Presidential Proclamation

V. UNSCHEDULED MAINTENANCE (Emergency Repair Service)

A. Contractor shall maintain the software in accordance with the manufacturer's latest specifications. The Contractor will provide any necessary unscheduled repair service to the software. All required patches, software code compilations and executable files shall be furnished by the Contractor.

Special Notice

B. The CO, COR or designee has the authority to approve/request a service call from the Contractor.

C. Response Time: - Contractor's FSE shall respond with a phone call to the COR or his/her designee immediately after receipt of telephoned notification twenty-four (24) hours per day. If the problem cannot be corrected by phone, the FSE will commence work (on-site physical or remote desktop response) within one (1) hour after receipt of this second notification and will proceed progressively to completion without undue delay. This requirement for response time shall be the same for both services calls during the VA normal business hours and after-hour service calls. COR will provide the Contractor with (a) an accurate description of the Software Error; (b) the steps necessary to reproduce the Software Error, if available; (c) if required, the data being processed at the time of the Software Error and associated log files; and (d) the severity of the Software Error, including the circumstances that lead to the Software Error. The COR and the contractor will communicate and mutually agree on the severity level the software error in writing.

D. Priority levels shall be defined as follows:

1). Critical Priority: System or Production Connection Down: Critical Priority shall mean a Software Error that renders the Software inoperable and causes a significant, time-dependent stoppage of MEDVAMC's business operations. Critical Priority instances will be reported via telephone by the COR. Contractor shall acknowledge Critical Priority instances within one (1) hour of the initial contact via telephone and commence working towards a resolution at that time.

2). High Priority: Significant Business Impact: High Priority shall mean a Software Error that causes the Software to fail resulting in significant revenue or operational impact on MEDVAMC's business, although certain functions of MEDVAMC's business remain in operation. High Priority instances will be reported via telephone by the COR. Contractor shall acknowledge High Priority instance within four (4) hours of the initial contact via telephone and commence working towards a resolution at that time.

3). Medium Priority: Low Impact Failure: Medium Priority shall mean a Software Error causes a feature of the Software to fail resulting in a non-critical situation which allows the MEDVAMC's business to remain in operation. A Medium Priority incident may include issues only impacting a single user or issues where the business impact under a Critical Priority or High Priority is resolved, but there is ongoing research needed to determine the root cause of the failure. Medium Priority instances may be reported via telephone, email or by the Customer Web Portal. The Contractor shall acknowledge Medium Priority instances within twenty-four (24) hours of the initial contact.

4). Low Priority: Assistance: Low Priority shall mean Software Error opened when Customer has general Software questions or needs that do not impact day-to-day functionality. Low Priority instances may be reported via telephone, email or by the Customer Web Portal. The Contractor shall acknowledge Low Priority instances within forty-eight (48) hours of the initial contact

Special Notice

E. Any charges for services, labor, travel, manuals, or software required to successfully complete unscheduled software maintenance is included within this contract. Unless specifically stated in writing otherwise and approved by the COR.

F. Contractor shall provide mandatory safety and performance-related updates to covered equipment and software.

G. The Contractor shall have the ability to concurrently address multiple emergency calls and unscheduled maintenance on different equipment.

VI. SCHEDULED MAINTENANCE

A. The Contractor shall perform patches, updates, enhancements and upgrades service to ensure equipment performs in accordance with latest OEM maintenance procedures and protocols. Scheduled software maintenance shall be scheduled at least three (3) days in advance with the COR. An outline of the scheduled software maintenance procedures and schedule shall be provided to the COR. The Contractor shall provide and utilize procedures and checklists with worksheet originals indicating work performed and actual values obtained (as applicable). This documentation shall be provided to the COR at the completion of the scheduled software maintenance. The contractor shall provide written description of scheduled software maintenance. This description shall include an itemized list of the procedures performed.

B. Scheduled software maintenance services shall include, but need not be limited to, the following:

- 1) Reviewing operating system software diagnostics to ensure that the system is operating in accordance with the manufacturer's specifications.
- 2) Performing remedial software maintenance of non-emergent nature.
- 3) Returning the equipment to the operating condition per OEM
- 4) Providing documentation of services performed.

C. Services shall be performed in accordance with and during the hours defined in, Section 4, the scheduled software maintenance schedule established. All exceptions to the scheduled software maintenance schedule shall be arranged and approved in advance with the COR.

VII. SOFTWARE UPGRADES & UPDATES

The Contractor will provide all operational software and drive enhancements and/or updates deemed necessary by the OEM that materially affects the performance of the equipment, without additional charge to the government. These enhancements to the contractor's equipment shall be made accessible by the Contractor to the Government site within 60 days of their issuance or date of first commercial availability.

VIII. Gray Market Items/Software

Gray market items/software are Original Equipment Manufacturers (OEM) goods sold through unauthorized channels in direct competition with authorized distributors. This procurement is for new OEM medical supplies, medical equipment and/or service for software maintenance of medical equipment for VA Medical Centers. No re-manufactures or gray market items will be acceptable. The delivery of gray market items to the VA in the fulfillment of an order/award constitutes a breach of contract. Accordingly, the VA reserves the right to enforce any of its contractual remedies.

Special Notice

The Contractor shall furnish software and licenses in accordance with the manufacturer's specifications. The Contractor has ready access to all software and licenses. All software and licenses supplied shall be compatible with existing equipment. The contractor shall use new original equipment manufacturer (OEM) software and licenses. All software and licenses shall be of current manufacture and have complete versatility with the presently installed software and equipment. All software and licenses shall perform identically to the original equipment specifications.

Travel for any and all service and software maintenance covered within this contract shall be covered by the contractor and shall not be reimbursed by the CO, VAMC, COR or any of its and/or their associates, employees or descendants under any conditions or circumstances.

IX. SERVICE MANUALS/TOOLS/EQUIPMENT/TRAVEL

The MEDVAMC shall not provide travel, tools, service manuals or service diagnostic software to the contractor. The contractor shall obtain, have on file, and make available to its FSE's all travel, operational and technical documentation (such as; operational and service manuals, schematics, and software list) which are necessary to meet the performance requirements of this contract. The location and listing of the service data manuals, by name and/or the manuals themselves shall be provided to the COR upon request.

X. DOCUMENTATION/REPORTS

The documentation shall include detailed descriptions of the scheduled and unscheduled software maintenance (i.e., Emergency software repairs) procedures performed, including updates, services and prices (for outside normal working hour services) required to maintain the software. The ESR shall consist of a separate report for the item(s) covered under the "specific" contract. Grouping different software from different contracts on "one" ESR is prohibited. In addition, each ESR shall, at a minimum, document the following data legibly and in complete detail

- A) Name of contractor and contract number.
- B) Name of FSE who performed services.
- C) Contractor service ESR number/log number.
- D) Date, time (starting and ending), software downtime and hours on-site for service call.
- E) VA purchase order numbers covering the call if outside normal working hours.
- F) Description of problem reported by COR.
- G) Identification of software to be serviced:
 - 1) Software license and version number,
 - 2) Manufacturer's name,
 - 3) Any other manufacturer's identification numbers.
- H) Itemized Description of Service Performed (including, if applicable, Costs associated with after normal working hour services) including:
 - 1) Labor and Travel
 - 2) Software patches
- I) Total Cost to be billed (if applicable - i.e., service rendered after normal hours of coverage).
- J) Signatures:
 - 1) FSE performing services described.

Special Notice

2) Authorized VA Employee who witnessed service described.

NOTE: - Any additional charges claimed shall be approved by the COR before service is completed!

XI. CONTACT INFORMATION

Upon contract award, the Contractor shall provide valid and reliable contact information for service, preventative maintenance, emergency and technical assistance requests.

XII. MOBILE MEDIA SCANNING

The Contractor will identify if removable media (i.e. USB or DVD/CD Device) is required to perform his/her duties. Personally-owned USB thumb drive utilization is prohibited. Non-VA support personnel must furnish their own FIPS140-2 certified USB thumb drives, and only with the permission of a designated VA supervisor. All USB drives must be scanned with an antivirus program running current virus definitions by the local VA staff, prior to connection to any VA device. COR or designee will ensure the removable media is scanned with anti-virus software running current virus definitions prior to connection to any medical device system. The computer system for scanning removable media is located in the biomedical engineering shop, Building 100, Room BA200.

XIII. ADDITIONAL SERVICES

Contractor shall include, at no extra charge, any engineering and software update necessary for continued optimum operation of the equipment listed in this contract. Contractor shall include remote monitoring capabilities allowing for remote diagnostics and troubleshooting. The Contractor's repairman shall complete a full service report, in writing, after each service call (emergency or scheduled) and submit either a hard copy or an electronic version of this report to the COR within 5 days after the service day.

XIV. ADDITIONAL CHARGES

In any case, the MEDVAMC shall be explicitly notified in advance that additional charges will be incurred, prior to beginning any work deemed to be outside the scope of this contract. In such instances that the MEDVAMC agrees the work is not within the scope of the contract, and the MEDVAMC desires the Contractor to perform service, a separate purchase order will be issued to the Contractor for the work. Any service required which the Contractor believes to be in excess of the contract provisions and require additional payment (e.g., work beyond normal work hours) shall not be performed without prior authorization from the BIOMED COR, who will arrange a separate purchase order to pay for the additional service if desired by the MEDVAMC.

The Government shall not be responsible for incidental charges including, but not limited to, parking, tolls, mileage, phone, etc., on straight time or overtime work.

XV. REPORTING REQUIRED SERVICES BEYOND THE CONTRACT SCOPE

The Contractor shall immediately, but no later than 24 (twenty-four) consecutive hours after discovery, notify the COR (in writing) of the existence or the development of any defects in, or repairs required, to the scheduled software which the Contractor considers he/she is not responsible for under the terms of the contract. The Contractor shall furnish the COR with a written estimate of the cost to make necessary repairs.

Special Notice

XVI. CONDITION OF EQUIPMENT

The Contractor accepts responsibility for the equipment in "as is" condition. Failure to inspect the software prior to contract award will not relieve the Contractor from performance of the requirements of this contract. Following the completion of any service performed by the contractor, the contractor shall show to the COR that the required system components are in place and fully-functional prior to COR acceptance explained in the Reporting Requirements Section.

Asset Summary For: VAMC Houston IM License Number: 333021 and 344986 This list covers existing and new software products.		
Software Part	Description	QTY
IM-B07	Instrument Manager Base Software with High Availability	1
IM-CX-07	Instrument Manager Interface Connection with High Availability	100
IM-EU-07	End User Software Connection with HA/DR	56
IM-ELP	Light Pole Connection	2
IM-ODBC-07	Open Data Exchange Connection with HA/DR	1
IM-IN-01	Lab Intelligence	1
IM-MA-02	Moving Averages - Moving Medians	1
IM-MRE-01	Manual Results Entry	1
IM-QC-BI	Peer & Daily QC Integration for Bio-Rad Unity Real Time	1
IM-SM-01	Specimen Management	1
IM-B02-TEST	Test - Instrument Manager Base Software	1
IM-CX-01-TEST	Test - Instrument Manager Interface Connection	10
IM-EU-01-TEST	End User Software Connection for Test System	5
IM-ODBC-01-TEST	Open Data Exchange Connection for Test System	1
IM-ELP-TEST	Test - Light Pole Connection	1
IM-IN-01-TEST	Lab Intelligence for Test System	1
IM-IM-02-TEST	Test -Moving Averages – Moving Medians	1
IM-MRE-01-TEST	Test - Manual Results Entry	1
IM-QC-BI-TEST	Test - Peer & Daily QC Integration for Bio-Rad Unity Real Time	1
IM-SM-01-TEST	Test - Specimen Management	1

Special Notice

CS-MAS-01	Instrument Manager Maintenance and Support	1
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XVII. REMOVAL OF EQUIPMENT

Contractor shall coordinate with the COR for the removal of equipment if required for software maintenance. Government property cannot be removed from the station without a signed Property Pass. This Property Pass may be obtained from Acquisition & Material Management Service, Personal Property Section, 4A-320 after removal is authorized by the COR.

XVIII. COMPETENCY OF PERSONNEL SERVICING EQUIPMENT

A. Each respondent shall have an established business, with an office and full-time staff. The staff includes a "fully qualified" FSE and a "fully qualified" FSE who will serve as the backup.

B. "Fully Qualified" is based upon training and on experience in the field. For training, the FSE(s) has successfully completed a formalized training program, for the equipment and is OEM Certified or an OEM employee. For field experience, the FSE(s) has a minimum of two years of experience (except for equipment newly on the market) with respect to scheduled and unscheduled software maintenance & support, on Data Innovations Instrument Manager software/equipment.

C. The CO or COR may authenticate the training requirements, request training certificates or credentials from the Contractor at any time for any personnel who are servicing or installing any MEDVAMC equipment. The CO and/or COR specifically reserve the right to reject any of the Contractor's personnel and refuse them permission to work on the VAMC equipment.

D. If subcontractor(s) are used, they shall be approved by the CO; the Contractor shall submit any proposed change in subcontractor(s) to the CO for approval/disapproval.

XIX. SAFETY REQUIREMENTS

The MEDVAMC, CO, COR or any of its and/or their associates, employees or descendants under any conditions or circumstances shall not be held responsible for any safety incident or any injury or any inconvenience experienced by the Contractor, their associates, or subcontractors while performing the services, labor, travel, software upgrades or maintenance included within this contract to the extent applicable by federal, local and state law with federal law taking precedence

Special Notice

XX. INSURANCE

A. Worker compensation and employer's liability: - Contractors are required to comply with applicable Federal and State Worker Compensation and occupational disease statutes.

B. General Liability: - Contractors are required to have Bodily Injury Liability Insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.

C. Property Damage Liability: - Contractors are required to have Property Damage Liability insurance coverage of at least \$500,000.

XXI. GOVERNMENT PARTY TO EXECUTE AND MODIFY THE CONTRACT

After the contract has been in force for a period of time, it may be necessary to change and/or modify the operations to provide better service. Pursuant to FAR 43.102, no government personnel other than the Contracting Officer can execute contract modifications on behalf of the government. Costs incurred by the Contractor through the actions of parties other than the CO shall be borne by the Contractor

XXII. END OF SERVICE PERIOD

No service shall be performed under this agreement after the contract expiration date without written authority or direction from the Contracting Officer.

XXIII. PRIVACY/SECURITY

The contractor will have electronic connectivity to the devices via a VA-provided remote desktop session. The Vendor will only have access to patient databases and PHI when physically troubleshooting image quality and other specific imaging related maintenance.

Any electronic or magnetic data storage devices such as hard drives, etc. shall be turned into the ISO. Electronic or magnetic data storage devices are not to be removed from VA property

XXIV PAYMENTS

The Contractor shall submit requests for payment electronically to the VA's Tungsten Network. Invoices shall be paid Monthly, in arrears for all authorized work performed, upon receipt of a properly prepared invoice submitted to:

<https://www.fs.va.gov/einvoice.asp>

- 1) Name and address of the contractor
- 2) Invoice date and number
- 3) Contract Number, Purchase Order Number, contract line item number
- 4) Detailed description of quantity, unit of measure, unit price and extended price of the services performed
- 5) Item(s) covered (to include License #'s)

End of Scope of Work